सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ०९९
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MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 26.10.2021

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) for Air Cargo Complex, Sahar, was held on 26.10.2021 at 03:30 P.M. which was chaired by Shri P.V.N. Suresh Babu, Commissioner of Customs (Import/General). In view of the government advisory regarding "social distancing" and preference for eschewing avoidable movements to combat the threat of Covid-19, the meeting was conducted via Web Conference.

The following officers and representatives of various stakeholders participated in the meeting:

Name & designation	**Organization**
Shri Ranjit Kumar, Commissioner, (Export)	Customs, ACC, Mumbai
Shri M. Rammohan Rao, Addl. Commissioner (Import)	Customs, ACC, Mumbai
Shri Sudhakar Pandey, Jt. Commissioner (Export)	Customs, ACC, Mumbai
Ms. Mamta Saini, Jt. Commissioner (Import)	Customs, ACC, Mumbai
Shri Amit Kumar Sharma, Jt. Commissioner (General)	Customs, ACC, Mumbai
Shri Harish D. Hinduja, Asstt. Commissioner (PRO, Import)	Customs, ACC, Mumbai
Shri Nitish Pathode, Deputy Commissioner, Import/EDI	Customs, ACC, Mumbai
Name of attendees of stakeholders	**Organization**
Shri Dushyant Mulani, Shri Kaushal Thakkar, Shri Ketan Desai, Shri Sanjeev	BCBA
Sh. Bala Ayer	ACAAI
Shri Manoj Singh, Sh. Ashok, Sh. Mayur, Sh. Nasir	MIAL
Shri Nimesh Desai	WISA
Shri Mahesh Kamble	Air India
Shri Harish Zade	Lufthansa Cargo

At the outset, Commissioner of Customs (Import/General) welcomed the members of Trade, Customs Broker Associations, Representatives of Airlines/Custodian, and other stakeholders present for the virtual meeting.

Following agenda points were taken up:

A. <u>OPEN POINTS FROM LAST PTFC MEETING HELD ON 30.07.2021</u>

1. <u>Payment of Fees as per Board Circular 05/2021 towards IGST Refund through Alternate Mechanism</u> (Export)

Feedback received from Exporters, that they are being asked to pay ₹1,000 even for application made prior to the said Circular, where the SB are not processed.

In view of the above BCBA requested the department not to recover ₹1,000 if the exporter is able to produce the copy of the application submitted prior to the board Circular, as the delay is not from their end.

BCBA, in the previous meeting requested for further time in the matter to discuss with exporter's community. Sh. Dushyant Mulani of BCBA informed the members that they would be meeting exporters and FIEO after Diwali and would represent again, if required, with actual data. BCBA requested to close this point as of now.

(Point Closed)

2. <u>Online working of Bond Dept. to maintain social distancing</u> (General)

BCBA requested that the manual processes such as amendment etc, in Bond Section should be made online to maintain social distancing.

JC (General) informed the members that two proposals have been received from BCBA.

First, the bond may be uploaded on registered e-mail id of bond department. Regarding this, JC (General) submitted that bond being a legal document, this particular suggestion doesn't appear feasible because in any case of future requirement of original bond, the soft copy of bond won't be sufficient.

Second, BCBA suggested that TA/Bond should generate checklist within 30 mins of receiving of mail on registered email id. Regarding this, JC (General) submitted that they had already directed their staff to do this as soon as possible and suggested that this may also be looked by TSK.

Commissioner (General) requested BCBA to meet him and discuss with their points if they want matter to be reconsidered regarding legality of bond paper.

(Point Closed)

3. <u>Shifting of TSK counter near ACC Import Appraising group</u> (General)

In view of the monsoon season, BCBA kindly request that TSK counter, which is visited frequently by CB Staff, should be shifted near Import Appraising group. This request in on humanitarian ground due to monsoon.

In previous meeting, Commissioner (Import/General) directed ADC, Import to examine the proposal as above and sort out the issue, if possible. ADC(Import) informed the members that they had discussion with BCBA and trade members and in the coming week, they will have an

inspection for feasibility of place and requested to keep this point open for next meeting.

(Point Open)
Action By : ADC, Import & JC, General

4. BCBA is getting considerable complaint from trade regarding Bill of Entry not reflecting in IDPMS / EDPMS (EDI, Import)

BCBA suggested that mechanism be worked out to ensure that such complaints are attended with rectification in system.

In previous meeting, Commissioner suggested that the references may be taken up with ADC, EDI in person so that the matter can be taken up with DG systems on priority.

Regarding EDPMS, DC(EDI) informed the members that this issue has already been cleared now and transmission of SB to RBI has already been facilitated through AMEND role in SSO ID dashboard of AC/ Export shed.

Regarding IDPMS, DC(EDI) informed the members that this issue has already been referred to DG/Systems and Saksham Seva and they informed that this issue occurred between 01.06.2021 to 18.08.2021. Deployment at end of DG/Systems and Saksham Seva already been done. Moreover, DC(EDI) informed that this issue is not recurring and if occurs, EDI is issuing trans-shipment certificate on case to case basis.

(Point Closed)

5. There have been several cases regarding the IGST Amount not getting reflected in GST portal after payment of Custom Duty. (Export)

BCBA requested to kindly take up the matter with Directorate of System to mitigate this issue on priority basis.

DC(EDI) informed the members that they have taken up the matter with DG/Systems and Saksham Seva and then they asked for screenshot of dashboard of portal showing non-reflection of BE. After examining the said screenshot, DG/Systems informed that this issue doesn't pertain to Customs and it is to be resolved by GST helpdesk authorities. Commissioner(General) asked the sponsoring authorities to pursue matter with GST authorities.

(Point Closed)

6. Faceless issues (Import)

BCBA compliment CBIC and Entire Customs formation for issuance of CBIC Circular 14/2021. In order to ensure compliance of the instructions given therein, BCBA suggested that suitable guidance be given to the trade if there is delay in attending the Bill of Entries beyond 3 hrs as specified in Para No 3.2 (ii) of the above circular.

In previous meeting, Commissioner (Import) directed ADC, Import to take a note of it and come up with a solution in this regard. BCBA thanked Commissioner (Import) for announcement regarding Google forms for mechanism to help faster clearance. Commissioner (Import) informed the members that a facility notice has been issued in this matter. Commissioner (Import) also informed the members that they can contact any of the three Additional Commissioners for any help regarding emergency clearances.

(Point Closed)

7. Sh. Warkad Yogesh Nilkanth, Regional Deputy Director, WCCB, WR, Navi Mumbai requested to include the names of **restricted/prohibited wildlife species (plants and animals) in the Risk Management System**. Commissioner (Export) suggested that a letter may be sent to him in this regard so that the matter will be taken up with Risk Management Divison.

No one was present in the meeting on behalf of WCCB.

(Point Open)
Action By: WCCB

8. Requesting for helpdesk on ACC Website to escalate the delays happening in FACELESS Assessment with FAG (Import)

BCBA requested to provide a mechanism to escalate the delay happening in Faceless Assessment with FAG. They suggested that a helpdesk be kindly provided on ACC Mumbai Website where trade and industry can provide the real time information with BE Details.

Same as discussed at point no. 6 above.

(Point Closed)

9. Issues in Examination orders received for FAG Bill of Entries (Import)

With a view to facilitate the trade, ease of doing business and transparency, BCBA requested that examination order and CCR Instructions, be kindly printed on 1st copy of Bill of Entry as it was done earlier.

In previous meeting, ADC, Import informed the members that this is a system issue and if BCBA come up with a representation in this regard, the same will be taken up with DG systems.

BCBA informed that they have already submitted a letter to CBIC and DG/Systems and requested to close this point since the matter has already been escalated to concerned authorities.

(Point Closed)

10. Ledger Print for License (Export)

At present, trade is facing difficulties in checking the balance amount for the various licences which are debited during clearance. As per the discussion held in PTFC meeting dated 29.10.2020, point No 3, they requested that suitable PN may kindly be issued instructing the licence dept. to provide the balance / printout of ledger for the licences used for clearance.

In previous meeting, JC, Export noted the request of the trade and informed the members that they would examine the same and come up with the solution in the next meeting.

JC(Export) informed the members that after examining the issue, it was found that in most of the cases, there is requirement from DGFT for ledger print for issuance of any kind of certificate. So, in such cases, JC(Export) informed that they will prescribe a solution soon.

BCBA suggested that for sake of transparency, importers may also be given such print facility for knowing actual ledger balance and record maintenance. Commissioner (Export) agreed to the demand of BCBA and stated that in first phase, they will be starting this ledger print facility as

per the requirement of DGFT and after that situation will be assessed again in view of BCBA's demand.

(Point Open)
Action By: JC, Export

11. Delay in issuing of Gate pass by Custodian MIAL resulting in additional demurrage charges (MIAL)

They requested to instruct MIAL to depute additional staff at the gate pass counters for issuing gate pass. This will reduce the congestion at the counter.

In previous meeting, Sh. Manoj Singh of MIAL informed the members that the said issue is occurring for the past one or two days. He assured the trade that the problem faced by the trade will be resolved by deputing extra staff in the peak hours.

Mr. Nasir from MIAL informed that they had deployed 2 dedicated officers in peak Hours i.e. 4 PM to 8 PM to monitor gate pass counters and to avoid any delay in gate pass. He also informed the trade that they had system issues for 2-3 days and that has been resolved now.

BCBA submitted that the same system problem had occurred 7 days back again and requested to remove this problem permanently.

Mr. Mayur from MIAL informed the members that they are in the process of implementing digital gate pass delivery system where CHA doesn't need to come to counter for Gate Pass and the same can be generated at their office itself. Further, the ongoing practice of issuing gate pass from the counter shall be continued.

(Point Closed)

B. Fresh Agenda Points:

Points raised by BCBA:

1) **Delay due to lack of proper service by Custodian Air India at ACC, Mumbai. Trade has been addressing the issue since last four years (BCBA representation enclosed). Urgent steps need to be taken by your good office in the larger interest of exim trade.**

Mr. Sanjeev from BCBA informed the members that there is lack of accountability in Air India Services. He further added that people are running pillar to post to get cargo loaded and there is acute shortage of staff at night. He further stated that there is shortage of forklifts and their battery discharge is perennial issue going on with forklifts and they also don't have replacement battery backup.

Mr. Mahesh Kamble from Air India informed that since last 25 days they have increased their manpower by 14. They have also given proposal to their management to increase strength to adequate requirement.

BCBA requested Air India to nominate nodal officer who could be contacted for any issue regarding delivery of cargo.

Air India agreed to request of BCBA and assured that both the proposals will be addressed by November end.

(Point Open)
Action By: Air India

2) **Frequent downtime in public enquiry module of ICEGATE is creating difficulty for exim trade for clearance of import export consignments.**

DC(EDI) informed the members that this issue can be directly solved from DG/Systems or icegate and stated that they will also make a reference to them regarding the same. BCBA agreed to the same. Commissioner informed that all the ADCs has already been directed to take stock of pending BEs.

Mr. Nimesh Desai from WISA with the permission of chair requested to waive off late filing penalty in case of BE where evidence is produced that an attempt is made to file BE but it could not get through due to icegate system failure. Commissioner (Import) informed that the issue will be examined and appropriate steps will be taken.

(Point Closed)

3) **As per the discussion held in the previous PTFC meeting, we request MIAL to kindly issue circular to entire Trade and Industry regarding uniform parking charges applicable at ACC, Mumbai.**

BCBA has requested MIAL to issue a circular regarding uniform parking charges for parking at ACC.

Mr. Ashok from Security, MIAL informed the members that they have already issued a circular in 2019 and one addendum has also been issued in Aug, 2020. He also assured to share a copy of same to BCBA.

(Point Closed)

4) **We request MIAL to provide cafeteria for providing basic tea, coffee and refreshments inside ACC, Mumbai.**

Mr. Mayur from MIAL informed the members that they already have a canteen facility inside the ACC premises.

BCBA informed that the said canteen is not having proper food facility and is not suitable to all as not even simple food is available there.

Commissioner suggested BCBA and MIAL to have a meeting at their level and find a solution for the same.

(Point Closed)

Points raised by ACCAI:

5) **Regarding system breakdown between custodian and ICEGATE, though not frequent, causes tremendous hardship to the exporters because of delay in clearance and thereby causing missed flights or cancellation of orders etc. We are suggesting that in such eventualities, there should be a backup arrangement to clear the export cargo. On 11 October no cargo could be cleared because of the breakdown.**

Mr. Bala Iyer from ACCAI informed the members that there is constant system breakdown in exports and CARR message is not taking place between custodian and Customs due to which no export cargo gets cleared in such situation. He requested for some backup system like

manual clearance so that trade doesn't need to wait indefinitely for getting system problem rectified.

Commissioner (Export) agreed to the said point and informed that they took up the matter with MIAL. MIAL informed that they have some system issues which have been resolved successfully. Commissioner (Export) insisted on permanent solution of this system error from MIAL and stated that there is always option available of manual clearance in case of any unavoidable exigency.

Mr. Mayur from MIAL informed the members that this issue happened due to expiry of password required for transmission of CARR message from MIAL to ICEGATE. He further informed that there was delay in getting password from Saksham Seva due to which this CARR message problem occurred. He assured that this problem won't occur in future, and if occurs, they will try to resolve it quickly.

Mr. Mayur also requested to have a single point of contact from Customs to get any kind of help in such situation. Commissioner (Export) informed that DC(EDI) may be contacted in any such situation.

(Point Closed)

6) **Any other point with permission of the chair**

The meeting ended with a vote of thanks to the Chair.

This is issued with the approval of Commissioner of Customs (General /Import/ Export), Mumbai Customs Zone-III.

(M. Rammohan Rao)
Addl. Commissioner of Customs (Import)
Air Cargo Complex, Mumbai

COPY TO:

1. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
2. All Addl./Jt. Commissioner of Customs, Import / Export / General, ACC.
3. All members of PTFC meeting including BCBA & ACAAI. (via E-mail)
4. PGAs, ACC, Mumbai.
5. Office copy.